

PRO ARGUMENTS (Top 5)

Page: [p13 3]-[p14 4]

Score: 92.0

Citation_Start: now be dispensed by certified prescribers or retail pharmacies in-person or by mail.

Citation_End: Plaintiffs have demonstrated that the FDA's actions on mifepristone violate

Heading: State Authority to Regulate Abortion Post-Dobbs

Summary: The FDA's approval of mifepristone is challenged, citing flaws in the agency's regulation and public interest considerations. The argument weighs the strong public interest in ensuring the safety and efficacy of new drugs against the FDA's actions.

Page: [p8 16]-[p9 11]

Score: 83.02

Citation_Start: infringe on purported Federal legal protections [for abortion]. Memorandum on

Citation_End: doctors, and with only one in-person visit. In 2021, the agency halted the remaining

Heading: State Authority to Regulate Abortion Post-Dobbs

Summary: The memorandum aims to ensure safe access to medication abortion, despite the FDA's roll-back of safety measures. The Biden administration is following the Dobbs decision, allowing states to balance interests in unborn life, women's health, and medical integrity.

Page: [p7 19]-[p8 15]

Score: 82.93

Citation_Start: chosen to adopt or maintain tighter restrictions and more thorough regulations on

Citation_End: Administrations efforts to evaluat[e] and monitor[] state laws that threaten to

Heading: Administrative Action on Abortion

Summary: The Biden administration has taken steps to increase access to abortion, including issuing executive orders and memoranda. The administration has also emphasized the importance of protecting access to reproductive healthcare services.

Page: [p21 15]-[p22 12]

Score: 82.24

Citation_Start: interpretation alters the federal-state framework by permitting federal

Citation_End: recent actions is to encourage and achieve evasion of those state laws. Such evasion

Heading: State Authority to Regulate Abortion Post-Dobbs

Summary: In Dobbs v. Jackson (2022), the Supreme Court returned abortion regulation to the states, allowing them to balance interests in unborn life, women's health, and medical integrity. Twenty states, as amici, have enacted varying abortion laws some restrictive, some permissive with protections for a woman's life and other exceptions.

Page: [p18 7]-[p19 2]

Score: 76.25

Citation_Start: Under our Constitution, States have the primary authority to legislate to

Citation_End: inflammatory disease, severe bacterial infection and death, id. 41-41-103(a); are

Heading: State Primacy in Regulating Health and Safety

Summary: The Constitution grants states primary authority to regulate health, safety, and welfare. The Supreme Court recognizes the state's responsibility to balance competing interests in abortion regulation.

CON ARGUMENTS (Top 5)

Page: [p17 9]-[p18 6]

Score: 89.73

Citation_Start: Indeed, enjoining the FDA to abide by federal law would promote the public

Citation_End: will harm the public interest.

Heading: State Authority to Regulate Abortion Post-Dobbs

Summary: The FDA's action undermines public interest by disregarding state authority to regulate abortion. The Biden administration claims power to make abortion drugs accessible, despite contrary determinations by states.

Page: [p20 18]-[p21 14]

Score: 86.46

Citation_Start: C. The FDAs Actions Harm The Public Interest By Undermining

Citation_End: statement from Congress is heightened where, as here, an administrative

Heading: Harm to Public Interest and State Authority

Summary: The FDA's action harms public interest by undermining state authority to protect citizens and diverting resources. States have the authority to enforce laws regulating chemical abortions.

Page: [p14 5-24]

Score: 85.48

Citation_Start: the Federal Food, Drug, and Cosmetic Act and related FDA regulations. See Pls. Mot.

Citation_End: regulation doubly forecloses the FDAs approval. Pregnancy is not an illness[]. It is

Heading: Federally Regulated Abortions

Summary: The FDA's regulation of mifepriston is criticized for being flawed and in violation of federal law. The argument emphasizes the public interest in ensuring the safety and efficacy of new drugs and the FDA's failure to do so.

Page: [p16 13]-[p17 8]

Score: 75.09

Citation_Start: medicine, article, or thing designed, adapted, or intended for producing abortion. Id.

Citation_End: are at war with the law, the FDA cannot claim any public interest in enforcing them.

Heading: Medicinal Abortions and Statutory Prohibitions

Summary: The FDA's regulation of mifepriston is challenged, citing statutory prohibitions on the use of mail to send or receive abortifacient drugs. The argument emphasizes the public interest in ensuring the safety and efficacy of new drugs and the FDA's failure to do so.

Page: [p9 12]-[p10 9]

Score: 73.83

Citation_Start: in-person dispensing requirements during the COVID-19 pandemic and later

Citation_End: 355(a). To obtain FDA approval, a new drug must undergo an extensive process

Heading: FDA's Role in Regulating Abortion-Inducing Drugs

Summary: The FDA's actions contravene federal law, threatening public interest. The agency's broad condoning of mail-order abortion drug regimens and failure to ensure human and veterinary drug safety raise concerns.